

on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

Furthermore, when seeking punitive damages against a corporation like Defendants, Plaintiff must allege “advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation.” (Civ. Code §3294.) A review of Plaintiff’s FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of either Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

For the foregoing reasons, Defendants’ motion is **granted** with respect to the punitive damages allegations within paragraph 71 of the seventh cause of action and paragraph 3 of the prayer for relief, with leave to amend.

Attorney’s Fees

Defendants move to strike Plaintiff’s prayer for attorney’s fees on the grounds that Plaintiff has not alleged any statutory or contractual provision that would entitle her to attorney’s fees.

While Defendants are correct that Plaintiff has not alleged any contractual provision that would entitle her to attorneys’ fees, unsupported attorneys’ fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, “[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings.” (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorneys’ fees are recoverable as costs if authorized by statute, contract or law. (CCP § 1033.5, subd. (a)(10).)

As a consequence, Defendants’ motion is **denied** with respect to the attorney’s fees allegations.

6. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.

FILED BY: CHU, M.D., LINDA

TENTATIVE RULING:

Continued by the Court to September 20, 2026.

7. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.

SEAL DECLARATIONS IN SUPPORT OF MOTION TO COMPEL ARBITRATION THAT CONTAIN
CONFIDENTIAL INFORMATION

FILED BY: CHU, M.D., LINDA

TENTATIVE RULING:

Continued by the Court to September 20, 2026.

8. 9:00 AM CASE NUMBER: C25-03197